

**MEETING MINUTES
LANCASTER COUNTY BOARD OF COMMISSIONERS
TUESDAY OCTOBER 10, 2023, AT 9:30 AM
COUNTY-CITY BUILDING, ROOM 112**

**COMMISSIONERS: Christa Yoakum, Chair; Sean Flowerday, Vice Chair;
Roma Amundson, Matt Schulte and Rick Vest**

Advance public notice of the Board of Commissioners meeting was posted on the County-City Building bulletin board and the Lancaster County Nebraska website, emailed to the media and published in the Lincoln Journal Star print and digital editions on October 6, 2023.

Commissioners present: Christa Yoakum, Chair; Sean Flowerday, Vice Chair: Roma Amundson, Matt Schulte and Rick Vest

Others present: David Derbin, Chief Administrative Officer; Kristy Bauer, Deputy Chief Administrative Officer; John Ward, Deputy County Attorney; Matt Hansen, County Clerk; and Meggan Reppert-Funke, County Clerk's Office

Yoakum called the meeting to order at 9:31 a.m. and announced the location of the Nebraska Open Meetings Act.

1) MINUTES

A. Approval of the minutes of the Board of Commissioners meeting held on October 3, 2023.

MOTION: Amundson moved and Vest seconded approval of the minutes. Vest, Amundson, Flowerday and Yoakum voted yes. Schulte abstained. Motion carried 4-0 with one abstention.

B. Approval of the minutes of the Youth Services Director Interviews held on October 2, 2023.

MOTION: Flowerday moved and Vest seconded approval of the minutes. Flowerday, Vest, Amundson, Schulte and Yoakum voted yes. Motion carried 5-0.

2) CLAIMS

A. Approval of the claims processed through October 10th, 2023.

The Clerk noted there was an amendment to the claim to include payroll disbursements (Exhibit 1).

MOTION: Flowerday moved and Vest seconded approval of the claims as amended. Schulte, Flowerday, Vest, Amundson and Yoakum voted yes. Motion carried 5-0.

B. Approval of a claim to Indian Center in the amount of \$25,990. (Batch 299636, Document 820384)

MOTION: Vest moved and Amundson seconded approval of the claim. Amundson, Schulte, Flowerday and Vest voted yes. Yoakum abstained. Motion carried 4-0 with one abstention.

C. Approval of a claim to El Centro de las Americas in the amount of \$9,437.68. (Batch 299636, Document 820384)

MOTION: Amundson moved and Flowerday seconded approval of the claim. Vest, Amundson, Schulte and Flowerday voted yes. Yoakum abstained. Motion carried 4-0 with one abstention.

D. Approval of the claims including billing for goods and services beyond the 90-day time period provided in Neb. Rev. Stat. § 23-135:

1. Rixstine Recognition dated October 14, 2023, for a total of \$27. (Batch 299762; Document 820517)

MOTION: Vest moved and Flowerday seconded approval of the claim. Flowerday, Vest, Amundson, Schulte and Yoakum voted yes. Motion carried 5-0.

3) **CONSENT ITEMS** - These are routine business items that are expected to be adopted without dissent. Any individual item may be removed for special discussion and consideration by a Commissioner or by any member of the public without prior notice. Unless there is an exception, these items will be approved as one with a single vote of the Board of Commissioners. These items are approval of:

A. Amendments to the following County Contracts:

1. C-23-0013 with David Shively for professional election consulting services. The amendment extends the term for six months beginning October 10, 2023 through April 10, 2024. (C-23-0810)
2. C-21-0799 with Vulcan Signs / Vulcan Aluminum for the annual supply of traffic sign faces. (Quote 6443, the amendment renews the contract from November 7, 2023, through November 6, 2024. The cost to the County is not to exceed \$20,000.) (C-23-0811)

B. Right-of-way contracts with the following:

1. Jeremy and Kassandra Kurtzer, Southwest 114th Street and West Wittstruck Road, in the amount of \$505. (Project 22-30 / U-119) (C-23-0802)
2. Cynthia J Fixemer, Southwest 112th Street and West Yankee Hill Road, in the amount of \$1,382.50 (Project 22-30 / N-258) (C-23-0804)
3. Monte Bohmont Unified Credit Trust, Southwest 42nd Street and West Bennet Road, in the amount \$280.50 (Project 22-30 / T-281) (C-23-0805)
4. Ronald C and Myra J Morrison, Southwest 86th Street and West Panama Road, in the amount of \$842.50 (Project 22-30 / V-239) (C-23-0806)

C. Grant contract with Lutheran Family Services for the Health 360 program in the amount of \$92,700. (Funding is from the Joint Budget Committee for July 1, 2023, through June 30, 2024.) (C-23-0803)

D. Received and placed on file the following reports:

1. Mileage Reimbursements Reports in accordance with R-21-0053 for July – September 2023.
2. County Sheriff July – September 2023
3. Records & Information Management September 2023
4. Assessor/Register of Deeds September 2023
5. Clerk of the District Court September 2023
6. County Clerk September 2023

MOTION: Amundson moved and Flowerday seconded to approve the consent items.

Schulte stated a member of the public had requested Item 3A1 be removed from the consent agenda.

MOTION: Schulte moved and Vest seconded to remove Item 3A1 from the consent agenda. Amundson, Schulte, Flowerday, Vest and Yoakum voted yes. Motion carried 5-0.

ROLL CALL ON PREVIOUS MOTION TO APPROVE REMAINING CONSENT ITEMS: Schulte, Flowerday, Vest, Amundson and Yoakum voted yes. Motion carried 5-0.

MOTION: Flowerday moved and Vest seconded approval of Item 3A1.

Rick Hill, a member of the public, expressed concern about the County paying for election consulting services.

Schulte asked if the extension of the contract under 3A1 provides additional funding for consulting services. John Ward, Deputy County Attorney, said he believed the original contract provided funds up to \$10,000 but not more, and the extension would not change that total amount.

Schulte asked Ward to discuss the extension and whether it removes insurance requirements. Ward stated the person providing services would not be conducting work onsite and the services did not require any professional licensure, making insurance unneeded. Schulte asked Ward if insurance would be needed if there was a lawsuit, and Ward answered he did not have any knowledge of that.

Schulte asked how much of the funds under the original contract had been spent. Todd Wiltgen, County Election Commissioner, stated \$5,343.75 of the funding had been spent so far.

ROLL CALL: Vest, Amundson, Schulte, Flowerday and Yoakum voted yes. Motion carried 5-0.

4) NEW BUSINESS

A. Approval of the Supervising Attorney classification description effective October 10, 2023.

MOTION: Flowerday moved and Vest seconded approval of the classification.

Ward described the need for Items 4A through 4C and noted the Board had been briefed on them at a prior meeting.

ROLL CALL: Flowerday, Vest, Amundson, Schulte and Yoakum voted yes. Motion carried 5-0.

B. Resolution in the matter of adopting benefits for County Employees in the Unclassified Service to include Supervising Attorneys. (R-23-0080)

MOTION: Schulte moved and Vest seconded approval of the resolution and to correct an error on the item in the agenda. Schulte, Flowerday, Vest, Amundson and Yoakum voted yes. Motion carried 5-0.

C. Resolution in the matter of adopting a salary schedule for Deputy County Attorneys for Supervising Attorneys. (R-23-0084)

MOTION: Amundson moved and Vest seconded approval of the resolution. Amundson, Schulte, Flowerday, Vest and Yoakum voted yes. Motion carried 5-0.

D. Resolution in the matter of authorizing the County Board Chair to sign an Agreement with the Nebraska Department of Transportation (NDOT) to install an automatic license plate reader (ALPR) system on State highway right-of-way. (See correlating item 4E) (R-23-0085)

Ben Houchin, Chief Deputy Sheriff, described the need for the ALPR system on the State highway right-of-way in addition to its current placement attached to Sheriff's Office vehicles. He further explained how the system works. Neither the company that provide the equipment nor the Sheriff's Office sells any data.

Flowerday asked about facial recognition and storage of data. Houchin said the Sheriff's Office follows State law regulating ALPR systems, which allows storage of data up to 180 days if there is no reason to keep it.

Yoakum asked Houchin further questions about security of data and how the system works, and Houchin answered. Schulte asked Houchin to further explain the process once a vehicle is flagged in the system, and Houchin explained. Vest asked if the technology had changed from the last time the Board discussed the topic,

and Houchin answered the technology and process were the same. Vest asked Houchin to clarify the Item, and Houchin complied and provided examples of how the system is currently used.

Board members further discussed privacy and data security concerns.

Rick Hill, member of the public, approached the Board and displayed a document he said was a warrant against him. He expressed opposition to the use of an ALPR system by law enforcement.

Scout Richters, Policy Director at the American Civil Liberties Union (ACLU), provided copies of her written comments (Exhibit 2). She expressed opposition to the use of an ALPR system and listed reasons, including privacy concerns over increased surveillance of members of the public. Vest asked Richters to elaborate on privacy concerns. Board members continued to ask Richters questions about privacy and data concerns.

Yoakum and Flowerday asked Houchin if the third-party provider had access to the data, and Houchin said the Sheriff's Office does not allow the provider to share private information. Houchin described provisions in place to protect the public's data and gave examples of the benefits of the technology.

Yoakum asked what other counties are using ALPR systems, and Houchin answered the City of Kearney. Schulte asked how the ALPR system was being paid for, and Houchin answered forfeited assets.

MOTION: Vest moved and Amundson seconded approval of the resolution.

Robert Borer, a member of the public, stated doing something just because someone else is doing something is a bad argument.

Fanchon Blythe, a member of the public, stated her support for the Item because her son-in-law is a law enforcement officer and uses the technology.

Amber Parker, a member of the public, stated opposition to the Item due to privacy concerns.

Rick Hill, a member of the public, stated support for closing the southern United States border.

Connie Reinke, Lancaster resident, stated opposition to the Item due to security concerns.

Penny Stephens, Lancaster resident, stated elected officials had called others concerned about election security terrorists.

ROLL CALL: Vest, Amundson, Schulte, Flowerday and Yoakum voted yes. Motion carried 5-0.

- E. Agreement with the Nebraska Department of Transportation (NDOT) to install an automatic license plate reader (ALPR) system on State highway right-of-way. (There is no cost to the County.) (C-23-0809)

MOTION: Vest moved and Schulte seconded approval of the agreement. Flowerday, Vest, Amundson, Schulte and Yoakum voted yes. Motion carried 5-0.

- F. Acceptance of the Department of Justice (DOJ) Office on Violence Against Women (OVW) grant award in the amount of \$550,000, to improve criminal justice responses to domestic violence, dating violence, sexual assault, and stalking. (15JOVW-23-GG-02592-ICJR) (C-23-0807)

MOTION: Amundson moved and Flowerday seconded approval of the award.

Sara Hoyle, Human Services Director, explained the work planned under the grant and that it was the County's first time being awarded.

ROLL CALL: Schulte, Flowerday, Vest, Amundson and Yoakum voted yes. Motion carried 5-0.

- G.** Acceptance of Office of Juvenile Justice Delinquency Prevention (OJJDP) grant award in the amount of \$1,000,000 to be used to support a resource center designed to serve juveniles experiencing behavioral health crises. (15P JDP-23-GG-00797-JRIX) (C-23-0781)

Hoyle stated the County is one of three sites that received the grant. The funding will support the new family resource center called Square One, which will support juveniles with behavioral health needs.

MOTION: Flowerday moved and Amundson seconded approval of the award. Amundson, Schulte, Flowerday, Vest and Yoakum voted yes. Motion carried 5-0.

- H.** Documents in support of the County's application to the U.S. Department of Energy for the Energy Efficiency and Conversion Block Grant (EECBG) program:

1. Davis-Bacon Act Assurance Letter
2. National Environmental Policy Act (NEPA) Statement of Work
3. Authorization Letter

Nikki Suesz, County Grant Coordinator, discussed the grant application and corresponding documents.

MOTION: Amundson moved and Vest seconded approval of the documents. Vest, Amundson, Schulte, Flowerday and Yoakum voted yes. Motion carried 5-0.

- I.** Interlocal Agreement with the City of Lincoln for the installation of four election drop boxes at Lincoln City Libraries branch locations. (There is no cost to the County.) (C-23-0812)

Todd Wiltgen, County Election Commissioner, stated there are not enough drop boxes to accommodate the number of voters in the County. Compared to other counties, Lancaster County's one drop box is far below availability in other counties. He described the benefits of additional drop boxes and locating them at the four library locations. Increased use of the drop box has created traffic issues at the Election Commission Office.

Vest asked Wiltgen to elaborate on the drop boxes at the four locations. Wiltgen answered the drop boxes will be stand-alone drop boxes that follow State law, separate from the book drop boxes. The drop boxes are secure and compliant with the Americans with Disabilities Act (ADA). Wiltgen described the process for setting up the drop boxes, moving the ballots, and security measures planned. He noted that the Election Commission Office tracks ballots in its system and does not accept ballots that were not sent out.

Schulte asked about the locking of the drop boxes, and Wiltgen described how they are locked. Schulte asked Wiltgen to elaborate on the State law, and Wiltgen discussed its provisions. Wiltgen described how drop boxes were set up prior to passage of the State law.

Schulte asked why additional drop boxes are needed when voters already use the one available Wiltgen answered one drop box for 200,000 voters is not enough. Schulte asked about video surveillance of the drop boxes. Wiltgen said the new locations will not have video surveillance. Yoakum asked Wiltgen to discuss the penalties for committing election crimes. Wiltgen stated most election crimes are Class IV felonies.

Robert Borer, a member of the public, expressed opposition to additional drop boxes due to security concerns.

Jeannine Preszler, Lancaster resident, read from a document that described observations of a former staff person at the Election Commission (Exhibit 3).

Wayne Smith, a member of the public, stated his opposition to additional drop boxes.

Fanchon Blythe, a member of the Republic National Committee (RNC), distributed a resolution passed by that organization (Exhibit 4). She expressed concerns over the security of drop boxes.

Penny Stephens, Lancaster resident, displayed a video of a news story and encouraged Board members to vote against the Item.

Dawn Liphardt, Executive Director of the Nebraska Republic Party, stated she opposes additional drop boxes. She stated future legislation requiring voter identification will prevent the use of drop boxes.

Roger Preszler, Lancaster resident, read an account from a former employee in the Election Commission Office (Exhibit 5) and stated his opposition to additional drop boxes.

Connie Reinke, Lancaster resident, encouraged Board members to vote no on the Item. She discussed voter registration numbers in Lancaster County.

Peggy Cicmanec, a member of the public, expressed opposition to the time limit for members of the public to speak on the Item. She stated her opposition to additional drop boxes. Schulte stated he has not heard from any members of the public wanting more drop boxes.

Schulte and Yoakum discussed time limits for members of the public to speak.

Rick Hill, a member of the public, stated he was Paul Revere and stated his opposition to additional drop boxes.

Amber Parker, member of the public, stated there was corruption in the Israeli defense forces and that she supports Israel. She stated there are fraudulent election activities in the County.

MOTION: Flowerday moved and Amundson seconded approval of the agreement.

Parker returned to the podium to express opposition to a previous agenda item. Ward encouraged Parker to communicate with Board members at the contact information listed on the agenda if she had additional comments.

Schulte discussed his concerns of potential abuse of using drop boxes and stated he planned to vote no on the Item. Vest stated he appreciated the feedback from some members of the public but that additional drop boxes would be useful for voters in the County. He said he would support a future discussion of whether to have drop boxes monitored by security cameras.

ROLL CALL: Flowerday, Vest, Amundson and Yoakum voted yes. Schulte voted no. Motion carried 4-1.

J. Release of easement for utilities within Outlot B, Sunrise Estates 2nd Addition. (C-23-0808)

Ward stated the property had been annexed by the City and described its location.

MOTION: Vest moved and Amundson seconded approval of the release of easement. Schulte, Flowerday, Vest, Amundson and Yoakum voted yes. Motion carried 5-0.

The Board recessed at 11:13 p.m. and reconvened at 11:16 p.m.

K. Recommendation from the Purchasing Agent on behalf of the County Engineer to award a contract for unit price to Buel Trucking, Inc for Rock Riprap in the total amount of \$150,000. (B-23-217)

Pam Dingman, County Engineer, stated the purpose of the contract, including to prevent erosion around the County.

MOTION: Vest moved and Schulte seconded approval of the recommendation. Amundson, Schulte, Flowerday, Vest and Yoakum voted yes. Motion carried 5-0.

- L. Recommendation from the Purchasing Agent on behalf of the County Engineer to award a bid to JJK Construction, LLC for replacement of County Bridge C-284 in the total amount of \$762,087.41. (Project 22-43) (B-23-209).

Dingman displayed a map of the area (Exhibit 6) and said the cost of the bridge so far was under budget. Flowerday asked the cause of the cost savings, and Dingman answered it may be related to the South Beltway being completed.

MOTION: Schulte moved and Vest seconded approval of the recommendation. Vest, Amundson, Schulte, Flowerday and Yoakum voted yes. Motion carried 5-0.

M. Recommendation from the Personnel Policy Board:

- 1. Revise the classification of Building Cleaner Manager (C09)
- 2. Request to revise and change pay grade of the following classifications:
 - a. Security Guard (C06 \$46,354.88 - \$59,373.60 to C09 \$51,542.40 - \$66,023.36)
 - b. Security Guard Supervisor (C09 \$51,542.40 - \$66,023.36 to C12 \$57,312.32 - \$73,409.44)

MOTION: Vest moved and Flowerday seconded approval of the recommendations. Flowerday, Vest, Amundson, Schulte and Yoakum voted yes. Motion carried 5-0.

5) PUBLIC COMMENT - Those wishing to speak on items relating to County business not on the agenda may do so at this time.

Connie Reinke, Lancaster resident, discussed election security issues. She distributed a document describing alleged election interference in Colorado (Exhibit 7) and a document with accounts from a poll worker (Exhibit 8).

Dawn Liphardt, Executive Director of the Nebraska Republican Party, read from the book *Rigged* by Molly Hemingway and expressed concerns about election security.

Penny Stephens, Lancaster resident, expressed concerns about election security and displayed a chart (Exhibit 9).

Amber Parker, a member of the public, expressed concerns about election security.

Rick Hill, a member of the public, stated he plans to use legal methods to improve election security and expressed concerns with mail-in voting.

6) ANNOUNCEMENTS

- A. The Lancaster County Board of Commissioners will hold a public hearing regarding the One and Six-Year Road and Bridge Improvement Program on Tuesday, October 10, 2023, at 6:30 p.m., in Room 112 of the County-City Building (555 S. 10th Street, Lincoln).
- B. The Lancaster County Board of Commissioners will hold a staff meeting on Thursday, October 12, 2023, at 8:30 a.m., in Room 112 of the County-City Building (555 S. 10th Street, Lincoln).
- C. The Lancaster County Board of Commissioners will hold the following meetings and public hearings on Tuesday, October 17, 2023, at 9:30 a.m., in Room 112 of the County-City Building (555 S. 10th Street, Lincoln).

1. Regular meeting
2. Public hearing regarding vacation of portions of right-of-way east of the intersection of Northwest 40th Street and West Vine Street, located in Lancaster County, Nebraska.
3. Public hearing regarding amusement license application for Devin Ostrander to hold the No Shave Nebraska Annual Banquet event on November 30, 2023, at Champion Seed.
4. Board of Equalization

D. County Commissioners can be reached at 402-441-7447 or commish@lancaster.ne.gov.

E. The Lancaster County Board of Commissioners meeting is broadcast live on LNKTV (LNKTV.lincoln.ne.gov). LNKTV is available on Allo channel 2 and Spectrum channel 1300. For the rebroadcast schedule, visit lincoln.ne.gov (keyword: LNKTV). Meetings are also streamed live on YouTube and Facebook ([YouTube.com/LNKTVcity](https://www.youtube.com/LNKTVcity) and [Facebook.com/lancasterne](https://www.facebook.com/lancasterne)). LNKTV apps are also available on Roku, Apple TV and Amazon Fire TV.

7) **ADJOURNMENT**

MOTION: Vest moved and Amundson seconded to adjourn at 11:49 a.m. Schulte, Flowerday, Vest, Amundson and Yoakum voted yes. Motion carried 5-0

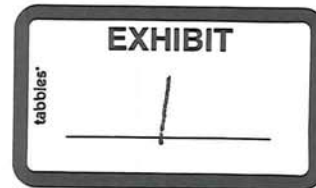


Matt Hansen
Lancaster County Clerk



LANCASTER COUNTY PAYROLL DISBURSEMENTS
For the Pay Period September 21, 2023 thru October 4, 2023
Pay Date: October 12, 2023

Gross Pay	<u>\$ 2,603,284.50</u>
Employer FICA	<u>\$ 190,547.81</u>
Pension Contribution	<u>\$ 180,983.53</u>
PEHP Contribution	<u>\$ 12,825.00</u>
PEHP Payout	<u>\$ 47,619.93</u>
Workers Compensation	<u>\$ 4,763.36</u>
Group Insurance	<u>\$ 507,619.96</u>
Employee Reimbursements	<u>\$ 957.20</u>



LANCASTER COUNTY EMPLOYEE EXPENSE REIMBURSEMENT

ATTACHMENT 1

For the Pay Period 09/21-10/04/2023

Pay Date: October 12, 2023

Employee Name	Department	Reimbursement Description	Amount
Schnieder, Jeff M	Sheriff	09/17-09/22/2023 Meals	\$ 250.00
Boden, Ronald	Sheriff	09/22/2023 Meal	\$ 20.00
Booth, Mark	Sheriff	09/22/2023 Meal	\$ 20.00
Booth, Mark	Sheriff	09/20/2023 Meal	\$ 20.00
Jones, Terry	Sheriff	09/20/2023 Meal	\$ 20.00
Nguyen, Ashley	Engineer	09/13-09/14/2023 Meals	\$ 40.00
Lahmann, Eduard	Engineer	09/13-09/14/2023 Meals	\$ 40.00
Mayer, Kristopher	Engineer	09/13-09/14/2023 Meals	\$ 40.00
Boehler, Nicholas	Engineer	09/13-09/14/2023 Meals	\$ 40.00
Dingman, Pamela	Engineer	09/13-09/14/2023 Meals	\$ 40.00
Turman, William	Engineer	09/13-09/14/2023 Meals	\$ 40.00
Baskin, Amanda	Public Defender	09/28/2023 Mileage	\$ 67.20
Savington, Danielle	Public Defender	09/20-09/24/2023 Meals	\$ 320.00
			<u>\$ 957.20</u>

October 10, 2023

Lancaster County Board of Commissioners

RE: Agreement with the Nebraska Department of Transportation (NDOT) to install an automatic license plate reader (ALPR) system on State highway right-of-way.

Dear Commissioners:

For over 50 years in Nebraska, the ACLU has worked in courts, legislatures, and communities to protect the constitutional and individual rights of all people. With a nationwide network of offices and millions of members and supporters, we take up the toughest civil liberties fights. Beyond one person, party, or side — we the people dare to create a more perfect union.

We write in opposition to the proposed agreement between Lancaster County and the Nebraska Department of Transportation (NDOT) regarding the installation of automatic license plate reader cameras on Interstate 80.

This agreement will facilitate and further large-scale police and government surveillance of all motorists who travel along the interstate between the designated mile markers. This addition furthers a trend of high-tech solutions to routine policing that implicates significant privacy concerns of innocent people in Lancaster County, along with a broadening of governmental use of license plate reader systems and similar technology.

Privacy Concerns

Automatic License Plate Readers (ALPRs) are a type of sophisticated cameras that can be fixed at stationary locations or on police vehicles and that can scan and record the license plate information of every car that passes within range of its lens. Depending on the type of device, these cameras are capable of collecting hundreds of license plate numbers in seconds.

When the ALPR system captures an image of a license plate, it also records such image with the time, date, and GPS location of the photograph. The devices can be programmed to do everything from collecting tolls to automatically checking plates against various watch lists and alerting law enforcement whenever a match or “hit” appears.

The tracking of people’s location constitutes a significant invasion of privacy, which can reveal many things about their lives, such as what friends, doctors, protests, meetings, political activities, or religious institutions a person visits. It is a core principle that the government and police agencies do not invade people’s privacy and collect information about citizens’ innocent activities *just in case* they do something wrong. Given the fact that the vast majority—99%+ of drivers captured—are not guilty of any crime, their privacy interests are all the more keen.

Photographing a single license plate on a public street may not seem problematic—but when data is compiled in a database, showing where that car appeared over the course of



134 S. 13th St. #1010
Lincoln, NE 68508
(402) 476-8091
aclunebraska.org

weeks or months, the government will have significant information about intensely personal aspects of our lives.

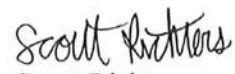
Oftentimes the data collected by these devices are retained by the private provider of the camera system. Even though there is some limitation on what governments and law enforcement can do with the captured data, there is not a clear description of what the private company who facilitates this ALPR will be doing with images and information collected. What will the private company do with this data? Can it be sold? Can it be made public, either deliberately or inadvertently? The material collected could be used by stalkers or criminals. Or more probably, by private companies wanting to market to new customers with direct information about their travel habits, choice in vehicle, manner of driving, etc.

State Law

In 2018 the Nebraska Legislature passed legislation limiting the use of ALPRs by law enforcement agencies and local governments. The bill, LB 93, was introduced by Senator Matt Hansen and was passed overwhelmingly by the Legislature (47-0-2). The bill was signed into law by Governor Ricketts on February 14, 2018, and its provisions can be found at Nebraska Revised Statutes §§60-3201 to 60-3209. LB 93 was passed based on the concern that state legislators had regarding law enforcement engaging in automatic and widespread surveillance and data collection, particularly in other states where ALPRs had been in use. For example, a California state legislator hired a private detective to track his wife. The state's ALPR records were available for purchase and the private detective the California politician hired was able to get data showing every place where the wife drove and parked.¹

Given the immense privacy concerns that accompany the installation of additional ALPRs, we urge you to not approve this agreement.

Respectfully,


Scout Richters
Policy Director

¹ Abel, Jennifer, "Police Respond to ACLU Lawsuit Over License Plate Scanner Data Retention," Consumer Affairs (May 14, 2017). Available online: <http://www.consumeraffairs.com/news/police-respond-to-aclu-lawsuit-over-license-plate-scanner-data-retention-051415.html>



These are concerning events that occurred while working at the Lancaster County election commission in Lincoln, Nebraska I was a temporary employee a teacher by trade,

2. About two weeks before the 2020 election, our computers went down for about 30 minutes. The Administrative Services Officer, (directly under Dave Shively) Becky Moravek told us that the IT department for the state did not know what had happened. The database of registered voters and absentee ballots that had been registered as received by our office is on these computers.

I saw the Democrat Deputy Election Commissioner Maura Kelly in the back room after ballot boxes from the Lincoln City Libraries were delivered, and she was sitting by herself and she was going through the boxes by herself. She also had a pen and I saw what looked like she was marking something. There's something fishy about the ballots from the library and nobody sees what's been dropped off.

On another day I was given a mail tray with absentee ballots that had been completed and returned to our office, I was told to scan the outside envelope into our computer and just glance at the signatures to see if they matched. If I had any envelopes that looked like the signatures didn't match I could put them aside, but Becky Moravek said, "**But we are not the signature police.**" This was the only tray that I was given, and I apparently wasn't going fast enough, because she came in and took the tray away and I was never given another tray during the entire election. I did have several envelopes that I had set aside because they did not look like they matched. Becky Moravek took away those envelopes, along with the rest of the tray of absentee ballots. She took it to the front and had someone else take over.

Beck Moravek now works for Health & Human Services.

this is an example of another way cheating takes place in our elections. We don't need more drop boxes.

REPUBLICAN

NATIONAL COMMITTEE

EXHIBIT

4

RESOLUTION URGING A "RETURN TO EXCELLENCE" IN AMERICAN VOTING AND ELECTIONS

WHEREAS, To present a formal Resolution from the Republican National Committee for declared opposition to voting manipulation schemes and to return to the functional and historic balloting and polling experience that Americans understand, appreciate, and love;

WHEREAS, The mission of the Republican Party is to act as the party that encourages and allows the broadest possible participation to all voters and to assure that the Republican Party is open and accessible to all Americans;

WHEREAS, Ensuring the integrity of our voting and election administration is critical and foundational to maintaining a civil and decent society decentralized from a federal government as the Founders intended;

WHEREAS, Americans expect accurate and swift determinations as it pertains to elections and the administration of elections;

WHEREAS, Elections have been under assault from those on the Left as they attempt to implement schemes and intentionally inject chaotic administrative changes that have drastically changed how elections are conducted in hundreds of the most populous counties and regions across the nation;

WHEREAS, Election officials are obligated to apply polling place access equitably in states, and should not eliminate polling places in order and to move to "vote center" models that make polling place access more difficult in more conservative areas;

WHEREAS, Democrats are passing non-citizen voting laws in liberal cities, which the Republican National Committee has previously resolved to oppose and ensure only United States citizens decide our elections;

WHEREAS, Republican officials are explicitly asking for decisive direction and support from the national Republican apparatus and elected Republican leadership;

WHEREAS, The grassroots activists of the Republican Party have discovered and made it abundantly clear that there are recognized problems with electronic election procedures and intentional complications of instituted systems that complicate, belabor, and slow down our election processes;

WHEREAS, Election experts agree that the most resilient voting systems use paper ballots, either marked by hand or with an assistive device, and are verified by the voter before any means of tabulation; and

WHEREAS, The Republican National Committee has unanimously opposed complicated election schemes like Ranked Choice Voting that is a clear example of the chaos being pushed on our states and territories; therefore, be it



These are concerning events that occurred while working at the Lancaster County election commission in Lincoln, Nebraska. I was a temporary employee a teacher by trade,

1. *duplicates 2020 election*

We received thousands of duplicate requests, we looked up each request to check if it was a duplicate and then filed them. We used the first request.

I saw voters come in and sign a form to get a early ballot, but I did not see them asking people to verify with their IDs. People were wearing masks and coats it would have been hard to identify them or if someone came in multiple times.

I was moved out of the backroom because a couple of guys came in with a bags of tools and I was told, "These guys are going to get the machines up and going." This was the week before the election, I saw them working on the machines.

It's concerning you can pick up your own ballot and 2 other ballots at the Lancaster County Election Commission in Lincoln Nebraska without showing identification or having any other documentation. You just have to give them the names and addresses of the people for whom you are getting the absentee ballots for.

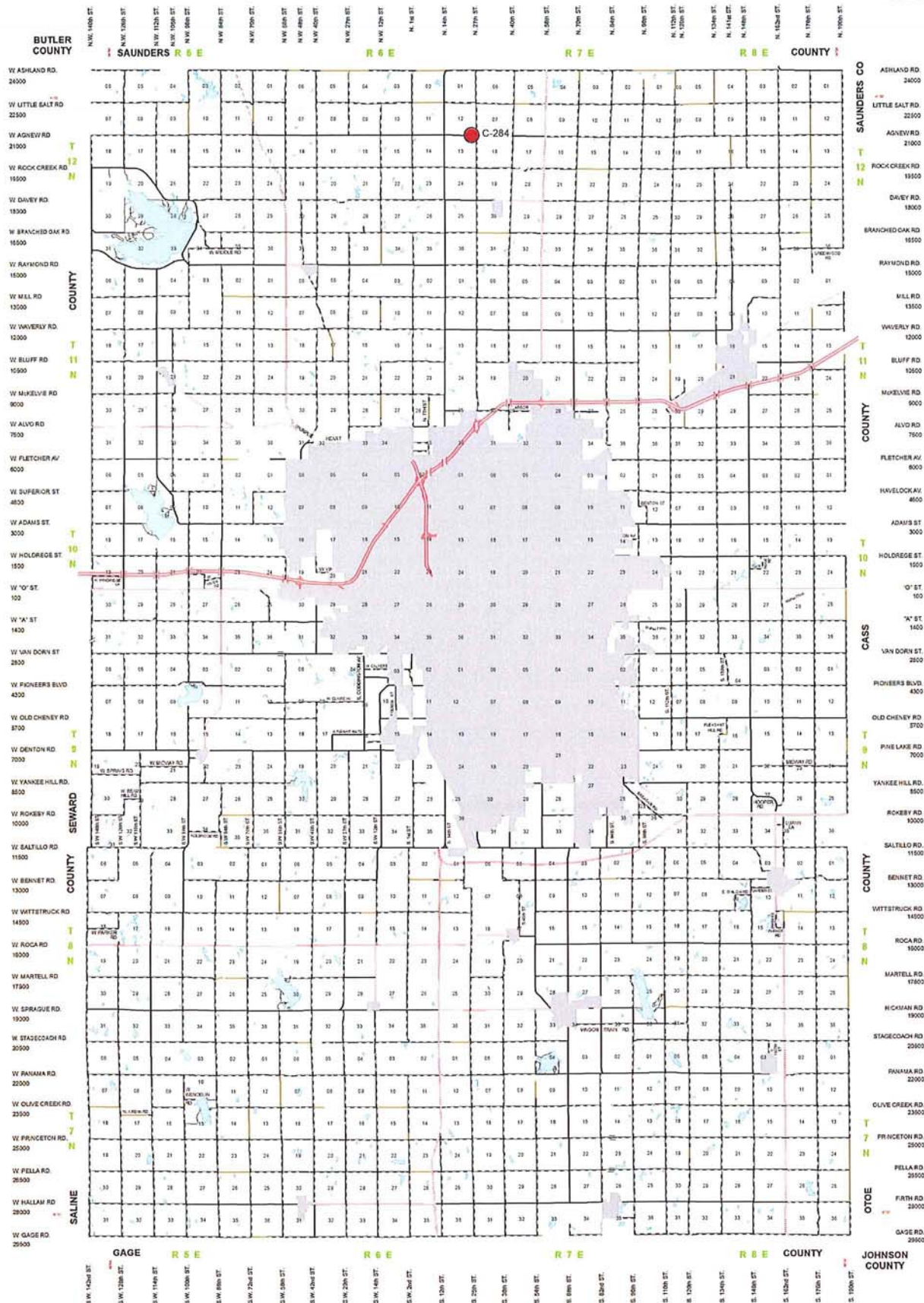
Lancaster County, Nebraska

22-43 - Replacement of County Bridge C

tabbles

EXHIBIT

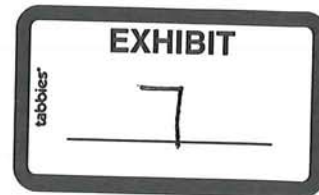
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Forensic Examination Proves Vote Manipulation and Illegal Destruction of Records on Dominion Voting Machines

By: Jeffrey O'Donnell and Dr. Walter C. Daugherty

April 21, 2022



We examined a copy of the hard drive from a Dominion Voting System computer used in Mesa County, Colorado, for two elections (November 2020 and April 2021).¹ As independent experts we determined that *the machine secretly manipulated ballot data and destroyed critical records*. Here are our key findings:

1. In both elections, after vote counting was underway, **thousands of ballots that had already been counted were secretly re-processed** inside the voting machine, undetected by election officials.
2. Alarming, the voting system had internal Wi-Fi/Bluetooth wireless **adapters** allowing unauthorized external connectivity, including to the Internet.² This **opened the door for almost any computer with internet access, anywhere in the world, to connect to the software and server**.
3. The hard drive image shows that, in both elections, two **new unauthorized "shadow" databases were secretly created** on the machine after counting began, either through "hacking" or pre-set algorithms.
4. The hard drive image shows that copies of digital records of select batches of **already-counted ballots were moved over to these shadow databases and recounted without notice to election officials or judges** (including 20,346 of 25,913 ballots in 2020 and 2,974 of 4,458 ballots in 2021).
5. The machine **made only the re-processed ballot files visible to local election officials and hid the original (not re-processed) ballot files**, making the final vote counts exceed the number of ballots visible to officials.
6. The number of ballots the machine selected for human evaluation was **significantly different in the secret and unauthorized recount** than it had been in the *original count*. This means either (1) new, fraudulent ballot images had been substituted for the original ones or (2) the program's settings were secretly changed after vote counting began.
7. The Dominion machine only recorded the vote tabulation in a single location, which assured that **there would be no record of the original vote count before the shadow databases were created**.
8. The machine was pre-set to **erase critical records within just a few days**, including activity logs and user logins, which basically "covered the tracks" of anyone **committing unauthorized access**, software installation, manipulation, or network connections.
9. Dominion and Colorado's Secretary of State **destroyed all data on the hard drive of the Mesa County machine one month after the April 2021 election** (as part of Dominion's nationwide so-called "Trusted Build"), **even though federal and state laws require election records to be preserved for at least 22 months**.³

¹ The county clerk for Mesa County, Colorado, Tina Peters, copied the hard drive from the Dominion voting machine both before and after Dominion's required software update (referred to as the "Trusted Build"), unbeknownst to Dominion or the Colorado Secretary of State. Peters submitted the copies to forensic experts for examination.

² Thirty-five machines in the system were found to have these adapters installed.

³ It is believed that the same thing happened on Dominion machines in Maricopa County, Arizona, where auditors found that 284,412 ballot images were corrupted or missing and "all the data in the database related to the 2020 general election had been fully cleared" contrary to federal law.

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- 1) There was only one leader/head worker. There was supposed to be 2. We waited 30 minutes for the 2nd leader/head worker to show. They never did. This caused all kinds of problems. First, we were shorthanded. There was only one head worker to go to for all the problems that day. And there were plenty of problems. Secondly, since we waited 30 minutes for them, we had to scramble to get set up and review what our position was supposed to do. Most of us had never worked a poll before. Lastly, there was only one person to deliver the ballots that day to the Election office. The first drop off was around 1 pm. And the last one was after the polls closed at 8pm. There were supposed to be 2 people minimum at all times near the ballot box. But since no replacement showed to help the one leader, no one was there to go with him. He was clearly very upset about this and it was not his fault. None of us could go with him because there was a steady stream of voters in all day long, and we were needed at the tables.
- 2) One of many problems' day, was a woman came to my table, who said she was registered to vote in Nebraska but she was not on our list. She had moved to Nebraska from Iowa 10 years ago. She had even voted in Nebraska in preceding elections. But yet she was not our list. AND she received a mail in ballot from her old Iowa address. Again, she hadn't lived in Iowa for 10 years. She was livid to say the least. So the one leader we had, helped her fill out paperwork so she could vote that day.
- 3) Another example of the problems, was an elderly lady came to my table, to vote. Our records showed she had already voted by a mail-in ballot. But she had no memory of voting by mail. Just to make sure, the one leader we had helped her fill out paperwork so she could still vote that day.

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ELECTIONS BY MAIL

WHAT COULD POSSIBLY GO WRONG?



EXHIBIT

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Ballot Design and Ballot Definition File	Ballot Printing	Ballot Delivery	Voted Ballots Returned	Signature Verification	Scanning Ballots	Resolving/Adjudicating	Tabulation	Results Reporting
Tells the tabulation software how to count the votes (which bubble belongs to which candidate)	List of voters sent to printing company	Printer delivers to USPS who delivers to voters	Completed ballots returned to county to be counted	Only preventative measure to people submitting ballots which are not their own	Mail in ballots scanned in batches on central count tabulator	Unnecessarily sent to adjudication	Counting votes	Announcing the results
Incorrect (accidental or intentional)	Printing error	Forwarding ballots to undisclosed locations	Drop boxes subject to break-ins	Insufficient training	Insert fraudulent ballots in bulk	Lack of supervision	Display vote totals early allows bad actors to know how many ballots need to be added to swing a race	Over the internet
Assign votes to wrong candidate	Print extra ballots	Delivered to the wrong voter	Transporters could swap or alter ballots	Some counties use machines to verify signatures which can be hacked or set to allow signatures to pass which don't match	Voter's selection can be moved by a program in a split second and be counted for the wrong candidate	Manually flip votes	Only flip of a switch on some systems	SOS provides special USB sticks which could contain malicious vote counting program
Altered after election starts	Sell extra ballots	Unsupervised access to ballots	USPS could swap or manipulate ballots	Default signatures can be added to voter's files so there is always a match	Images used for counting, not actual ballots	Rewriting ballots or unchecking selections	Machine algorithms to control counting	Published results are unofficial. Official is what the county has on their records
Controlling races	Print filled out ballots	Undeliverable as addressed	Allows for late ballots to be counted	Click through without checking	Off the shelf products used to scan, and in many cases, the scan station uses a laptop with internet capabilities	Bad actor could gain access through internet and alter data or change various things	Auditing methods used not designed to catch fraud or errors, and easy to bypass	Blindly trusting the results are accurate
Not audited	Print signature on ballots	Massive ballot harvesting	Ballot security insufficient	If rejected by verifier, sent to supervisor to check, who could push them all through as accepted		Program in the software could wake up and write a new database, changing the vote record	Tabulation used the ballot image to count the votes	Target for bad actors to interfere with results reporting
Override voter's selections	Shrink to fit ballot size	People with no interest in voting will not be looking out for a ballot	USPS could throw away ballots			Lack of auditing information for each modification made	Prone to attacks	Matchbacks not immediately available to public
Undetected	Sell ballot design	Major chain of custody holes and concerns of ballot handling	No authentication. Could be anyone filling out the ballot					
	Address changed during standardization of addresses prior to mailing		No observation/supervision					
	Un-auditable or doesn't match the list of people who voted							

ELECTIONS BY MAIL CONTAIN FLAWS IN EVERY STEP OF THE PROCESS. EACH FLAW IS AN OPPORTUNITY FOR MANIPULATION. THESE OPPORTUNITIES ATTRACT BAD ACTORS WHO HAVE PROBABLY DONE STRANGER THINGS FOR MONEY OR POWER.

